

or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be borne by each joint tortfeasor 'in direct proportion to [its] respective fault.'" (*Expressions at Rancho Niguel Assn. v. Ahmanson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Sup. Ct.* (1978) 20 Cal.3d 578, 597-598.) Thus, the elements are: "(1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible." (*C.W. Howe Partners, Inc. v. Mooradian* (2019) 43 Cal.App.5th 688, 700.) Thus, Cross-Defendant's liability is at issue for his defense to the indemnity claims. Therefore, the discovery is relevant.

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

Trial Setting Conference continued to 10.27.26.

Counsel ordered to file a Trial Setting Conference declaration 10 days in advance of hearing regarding mediation/ADR/ trial length in hours/ discovery/witnesses/interpreters/ status of settlement/special issues regarding evidence or exhibits/mutually agreeable trial dates within 6 months of the TSC as required by PS1 Law and Motion Rules. Failure to file can/will result in sanctions without further notice and the Court picking a firm trial date that will not be moved absent good cause.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO DEMAND FOR PRODUCTION OF DOCUMENTS BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Demand for Production GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses and responsive documents, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO SPECIAL INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Special Interrogatories GRANTED.

Plaintiff Amy Penn to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF DARRYL HAYES' FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling:

Cross-Defendant/Cross-Complainant Dennis N. Walsh Trustee of Dennis N. Walsh Revocable Trust's Motion to Compel Further Response to Form Interrogatories GRANTED.

Plaintiff Darryl Hayes to provide code compliant, verified responses, without objection, within 20 days.

Cross-Defendant/Cross-Complainant's Request for Sanctions DENIED.

Plaintiff's Request for Sanctions DENIED.